Item No. 01 Court No. 1

BEFORE THE NATIONAL GREEN TRIBUNAL
PRINCIPAL BENCH, NEW DELHI

Original Application No. 187/2017

Ridhima Pandey Applicant(s)

Versus

Union of India & Ors. Respondent(s)

Date of hearing: 15.01.2019

CORAM: **HON'BLE MR. JUSTICE ADARSH KUMAR GOEL, CHAIRPERSON**
HON'BLE MR. JUSTICE S.P. WANGDI, JUDICIAL MEMBER
HON'BLE MR. JUSTICE K. RAMAKRISHNAN, JUDICIAL MEMBER
HON'BLE DR. NAGIN NANDA, EXPERT MEMBER

For Applicant(s): Mr. Rahul Choudhary and Ms. Meera Gopal, Advocates
For Respondent (s): Mr. Divya Prakash Pande, Advocate for MoEF &CC

ORDER

1. This application seeks direction to assess the climate related issues while appraising projects for grant of environmental clearance. Further direction is to prepare targets or a carbon budget for the total amount of CO_2 emissions that can be released until 2050 ensuring that India shares its responsibility as member of the global community to achieve global climate stabilization and reduce atmospheric CO_2 to below 350 ppm by 2100, limiting the long-term average global temperature increase to no more than 1°C and direct that a time bound national climate recovery plan be prepared within the existing legal framework that includes interim CO_2 reduction targets and mitigation actions tiered to achieving India's carbon budget.

2. We are of the view that the authorities acting under the Environment (Protection) Act, 1986, have to perform their obligation of impact assessment as per statutory scheme which is not under challenge. The issue of climate change is certainly a matter covered in the process of impact assessment.

3. In this view of the matter, we do not consider it necessary to issue any direction under section 14 and 15 of the National Green Tribunal, Act, 2010. There is no reason to presume that Paris Agreement and other international protocols are not reflected in the policies of the Government of India or are not taken into consideration in granting environment clearances.

In view of the above, the application stands disposed of.

Adarsh Kumar Goel, CP

S.P. Wangdi, JM

K. Ramakrishnan, JM

Dr. Nagin Nanda, EM

January 15, 2019
Original Application No. 187/2017
JG